

Court No. - 3

Case :- WRIT - C No. - 32006 of 2016

Petitioner :- M/S Bihariji Containers Pvt. Ltd.

Respondent :- State Of U.P. And 3 Ors.

Counsel for Petitioner :- Sourabh Pathak

Counsel for Respondent :- C.S.C.,A.N. Singh,Nripendra Mishra

Hon'ble Krishna Murari,J.

Hon'ble Arvind Kumar Mishra-I,J.

Connect and list with Writ Petition (C) No. 51884 of 2009.

Heard learned counsel for the petitioner as well as learned counsel for the respondents.

By means of this writ petition, the petitioner has prayed for quashing the demand notice dated 24.05.2016, issued by the respondent No. 3. Learned counsel for the petitioner submits that additional security has been asked under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioner submits that similar writ petition has been entertained and interim orders have been passed by this Court. Reference has been made to the order dated 7.10.2009, in Writ Petition No. 51844 of 2009 (M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others).

Learned counsel for the respondents submits that in several matters identical questions are involved.

In view of the interim order as already granted in writ petition No. 51844 of 2009 as referred above it is provided, without prejudice to the right and contention of the parties, that until further orders of this Court the respondents are restrained from demanding additional security from the petitioner.

Order Date :- 15.7.2016

Dcs

Chief Justice's Court

Case :- WRIT - C No. - 32006 of 2016

Petitioner :- M/S Bihariji Containers Pvt. Ltd.

Respondent :- State Of U.P. And 3 Ors.

Counsel for Petitioner :- Sourabh Pathak

Counsel for Respondent :- C.S.C.,A.N. Singh,Nripendra Mishra

Hon'ble Dilip B. Bhosale,Chief Justice

Hon'ble Yashwant Varma,J.

Dismissed.

For orders, see order of date passed in Writ-C No. 30898 of 2016.

Order Date :- 21.3.2017

AHA

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)